

**BEFORE THE
COMMISSION ON TEACHER CREDENTIALING
STATE OF CALIFORNIA**

In the Matter of the Accusation Against:

DAWN M. IBBS, Respondent

Agency Case No. 2-476303123

OAH No. 2024100679

PROPOSED DECISION

Matthew S. Block, Administrative Law Judge (ALJ), Office of Administrative Hearings (OAH), State of California, heard this matter on May 27, 2025, by videoconference from Sacramento, California.

Patricia Webber Heim, Deputy Attorney General, represented Mary Vixie Sandy, Ed.D. (complainant), Executive Director of the California Commission on Teacher Credentialing (Commission).

Dawn M. Ibbs (respondent) was present and represented herself.

Evidence was received, the record closed, and the matter submitted for decision on May 27, 2025.

FACTUAL FINDINGS

Jurisdictional Matters

1. On April 3, 2013, the Commission issued respondent a One-Year Nonrenewable Speech Language Pathology Services Credential and a Clear Speech Language Pathology Services Credential (SLP Credential). The SLP Credential will expire on May 1, 2028, unless renewed.

2. On August 20, 2024, in her official capacity, complainant's representative signed and thereafter filed the Accusation against respondent. The Accusation alleged cause to discipline respondent's credentials for: (1) immoral conduct; (2) unprofessional conduct; (3) evident unfitness for service; and (4) moral turpitude. More specifically, the Accusation alleged that on December 19, 2022, respondent was convicted of driving while intoxicated (DWI) and third-degree assault in the State of New York.

3. As factors in aggravation, complainant alleged respondent's misconduct was followed by bad faith, dishonesty, or other violation of the law governing educators. Additionally, complainant alleged respondent's misconduct significantly harmed a child entrusted to her care, the public, or the educational system.

4. Respondent timely filed a Notice of Defense to the Accusation. The matter was set for evidentiary hearing before an ALJ of the OAH, an independent adjudicative agency of the State of California, pursuant to Government Code section 11500 et seq.

Complainant's Evidence

5. On December 19, 2022, in Local Criminal Court, Village of Weedsport, State of New York, County of Cayuga, Case No. 21120066, respondent was convicted by guilty plea of violating New York Vehicle and Traffic Law Section 1192.3 (DWI), a misdemeanor. On the same date, in Case No. 21120069, respondent was convicted by guilty plea of violating the Penal Law of New York, subdivision 1, section 120.03 (third-degree assault), a misdemeanor. In both cases, imposition of sentence was suspended, and respondent was placed on probation for one year subject to terms and conditions, including that she pay court fees and restitution and install an ignition interlock device on her vehicle.

6. The conduct underlying both convictions was the same. On December 25, 2021, respondent drove a motor vehicle while intoxicated. She ran a red light and collided with another vehicle in the middle of an intersection. One of the people in the other vehicle was 35 weeks pregnant. The expectant mother suffered internal bleeding and damage to the placenta and was forced to undergo an emergency cesarian section operation as a result.

Respondent's Evidence

RESPONDENT'S TESTIMONY

7. Respondent testified at hearing. She was born and raised in upstate New York. She received a Bachelor of Science degree in communication disorders from State University of New York at Cortland in 2007, and a Master of Science degree in speech-language pathology from Ithaca College in 2009. Respondent moved to California in 2012. She is 47 years old and presently resides in Modesto. She has

worked as a speech-language pathologist for Modesto City Schools for the last eight years.

8. After moving to California, respondent typically returned to New York to visit her mother during the summer and around Christmas. Her ability to do so was limited by the COVID-19 pandemic, and it had been some time since she had seen her mother when she last visited her in December 2021. At the time, respondent's mother was bedridden, and her health was rapidly declining due to heart problems. It was difficult for respondent to see her mother in such a condition, and she became emotional while testifying at hearing about that visit and the events surrounding it.

9. After spending Christmas Day with her mother, respondent went to her grandmother's house for dinner, where she consumed two glasses of wine. Respondent left her grandmother's house and began driving to her father's house after dinner. It was snowing. She thinks she was travelling approximately 30 miles per hour when she ran the red light and collided with the other vehicle.

10. On January 5, 2022, respondent entered a year-long substance abuse treatment program through Kaiser Permanente. She attended group and individual counseling sessions and submitted to biological fluid testing. Although she was not required to do so, respondent also began attending Alcoholics Anonymous (AA) meetings to reevaluate her relationship with alcohol.

11. Respondent successfully completed the substance abuse treatment program. She does not drink alcohol. However, she does not consider herself an alcoholic and she no longer attends AA. Respondent acknowledges she made a very poor decision to drive after consuming alcohol, but feels it was an aberrant event in an

otherwise law-abiding life, caused in part by the emotional hardship of seeing how much her mother's health had deteriorated since the last time she saw her.

12. Respondent's driver's license was suspended for six months following her conviction. She paid approximately \$20,000 on fines, legal fees, and travel to New York to appear in court. Her DWI conviction will remain on her criminal record for the remainder of her life because the State of New York does not allow expungement of DWI convictions.

13. Respondent is deeply remorseful for driving under the influence and harming another person. At their request, respondent wrote a letter to the victims in her criminal case which was received in evidence at hearing. That letter, dated April 4, 2023, provides, in pertinent part:

I am also a mother and because of this I understand the gravity of what I have done. You were not afforded the natural, peaceful, and joyful experience of childbirth. Instead, it was traumatic and stressful due to my actions. For that reason, I will be forever remorseful.

I promise that this will never happen again. I now fully understand the danger of my actions. I am horrified by the fact that I could have taken my own life, or even worse another person's life. I had no right to do what I did. I have worked to ensure this will not happen again by participating in counseling, a Victim Impact Panel, and attending Alcoholics Anonymous. This is my first DWI offense and it will be my last.

14. Respondent loves working as a speech pathologist with children. She is embarrassed by her arrest and convictions, and very few of her colleagues know about them. She has never been arrested or convicted of any other offenses. She is hopeful that she will be able to continue working for Modesto City Schools, and she has made them aware of the possibility her credentials will be disciplined.

LETTERS OF SUPPORT

15. Respondent submitted letters of support from two individuals, both of whom are aware of respondent's convictions in New York. The first was written by Shayna Clark, who works as a Special Education Program Manager for Modesto City Schools. Ms. Clark wrote, in pertinent part:

[Respondent] is effective in working with students who are receiving Speech services on campus. She works hard to create a safe learning environment and builds rapport with students and parents. She seeks professional development opportunities to further her knowledge and dedication to education and Special Education services for students.

[Respondent] brings a plethora of knowledge and expertise to each meeting we hold and works with colleagues to improve our student outcomes. She shares strategies with parents and helps promote Speech and Education in the home environment. [Respondent] is a great asset to our school site and provides excellent education and services to our community.

16. The second letter was written by Education Specialist Kari L. Bettencourt, who has worked with respondent at Roosevelt Junior High School for the past four years. Ms. Bettencourt wrote, in pertinent part:

[Respondent] has consistently demonstrated a strong command of content knowledge, in the area of Speech related disabilities as well as an ability to make material accessible and engaging for all learners. She is especially skilled at differentiating instruction, integrating technology and creating a positive experience for her students.

Perhaps most importantly, [respondent] approaches the profession with genuine care and integrity. She has great rapport with students and is exemplary, and she consistently fosters a safe, inclusive, and respectful environment where learners can thrive.

EMPLOYEE EVALUATION

17. Respondent's employee evaluation for the 2024-2025 school year was received in evidence. Evaluator Emily Poisson observed respondent engaging with students during the evaluation, and noted, in part:

[Respondent] demonstrates a strong capacity to engage and support all students in their learning by connecting content to students' lives and needs. She thoughtfully integrates real-world applications into her speech-language sessions, using tools such as emotion charts, sentence frames, and interactive games like Connect 4 and dice

racing. These activities provide students with the opportunity to develop social communication, emotional intelligence, and academic skills in a low-stress, supportive environment. Her use of personal greetings and rapport-building techniques enhance student comfort and readiness to learn.

18. Of respondent's understanding and organization of subject matter to support student learning, Ms. Poisson wrote:

[Respondent] demonstrates deep content knowledge in speech-language development and organizes her instruction to be developmentally appropriate and accessible for diverse learners. She presents content in manageable steps, revisiting key concepts and using visuals, modeling, and sentence frames to scaffold learning. Instruction is thematically aligned to IEP goals, ensuring that all materials and activities support specific student objectives. Through thoughtful planning and consistent formative checks, [respondent] helps students build understanding and confidence in applying concepts such as emotional expression, grammatical accuracy, and social communication.

CONTINUING EDUCATION

19. Respondent is required to complete 30 hours of continuing education every three years. She testified she has completed 22 hours of continuing education

within the past year alone. She also submitted numerous certificates demonstrating completion of continuing education classes on topics such as apraxia of speech and language development.

Analysis

20. The facts in this case are undisputed. In December 2022, respondent was convicted of DWI and third-degree assault in the State of New York. She drove a vehicle while under the influence of alcohol and ran a red light, colliding with another vehicle in the intersection. One of the occupants of that vehicle was 35 weeks pregnant and was required to undergo an emergency cesarian section operation due to internal bleeding and damage to the placenta. At issue here is whether respondent's convictions and the circumstances underlying them constitute immoral conduct, unprofessional conduct, and moral turpitude, and whether they are attributable to a temperamental defect which demonstrates she is unsuitable for the teaching profession.

21. There is broad discretion in determining what constitutes immoral conduct in the context of teacher disciplinary matters. (*California Teachers Assn. v. State of California* (1999) 20 Cal.4th 327.) Immoral conduct has been defined by the courts as follows:

[T]hat which is hostile to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the

opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare. (*Palo Verde etc. School Dist. v. Hensey* (1970) 9 Cal.App.3d 967, 972, citing *Bd. of Education of San Francisco Unified School Dist. v. Weiland* (1960) 179 Cal.App.2d 808, 811.)

22. Unprofessional conduct has been defined as "that conduct which breaches the rules or ethical code of a profession or conduct which is unbecoming a member in good standing of a profession." (*Shea v. Bd. of Medical Examiners* (1978) 81 Cal.App.3d 564, 575; *Bd. of Education v. Swan* (1953) 41 Cal.2d 546, 553.) "Evident unfitness for service" means a teacher is clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies. (*Woodland v. Joint Unified School District v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, 1444.) "Unlike 'unprofessional conduct,' 'evident unfitness for service' connotes a fixed character trait, presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district." (*Ibid.*)

23. A criminal act constitutes moral turpitude if it involves a serious breach of a duty owed to another individual or society. (*In re Lesansky* (2001) 25 Cal.4th 11, 16.) Acts of moral turpitude involve "bad character" and "readiness to do evil." (*People v. Zataray* (1985) 173 Cal.App.3d 390, 400.) Moral turpitude has also been described as "any crime or misconduct committed without excuse, or any 'dishonest or immoral' act not necessarily a crime." (*Clerici v. Dept. of Motor Vehicles* (1990) 224 Cal.App.3d 1016, 1027.) A crime of moral turpitude is "an act of baseness, vileness or depravity in the private and social duties which a man owes to his fellowmen, or to society in general,

contrary to the accepted and customary rule of right and duty between man and man.”
(*In re Craig* (1938) 12 Cal.2d 93, 97.)

24. Respondent’s decision to drive a vehicle after drinking was irresponsible and dangerous. Her conduct forced an expectant mother to undergo emergency surgery and was very unbecoming of an educator in good standing. It also demonstrated that on the evening in question, respondent had an inconsiderate attitude toward the public welfare. Consequently, complainant proved by clear and convincing evidence that respondent engaged in immoral and unprofessional conduct.

25. However, making a poor decision, even one which results in injury to another, does not necessarily establish that an individual has a non-remediable temperamental defect. Nor does it establish that an individual is of bad character or ready to do evil. In this case, respondent has taken full responsibility for the consequences of her actions. In her letter to the victims and in her testimony at hearing, it was clear that respondent fully appreciates the gravity of what occurred.

26. Immediately following her arrest, respondent voluntarily began participating in substance abuse treatment and AA. Although she no longer attends AA, she continues to abstain from drinking. Accepting responsibility and taking affirmative measures to prevent future harm are indicative of good character, notwithstanding a lapse in good judgment. When all the evidence is considered, complainant did not establish by clear and convincing evidence that respondent’s conduct is indicative of moral turpitude, or indicative of a fixed character trait rendering respondent unsuitable for the teaching profession.

27. In *Morrison v. State Board of Education* (1969) 1 Cal.3d 214, the California Supreme Court concluded that a teaching credential cannot be disciplined for immoral

or unprofessional conduct “unless that conduct indicates that the [educator] is unfit to teach.” (*Id.* at p. 229.) The Court outlined factors to consider when determining whether an educator’s conduct demonstrates unfitness to teach, which have been codified in California Code of Regulations, title 5, section 80302, subdivision (a). The factors are:

- (1) the likelihood that the conduct may have adversely affected students or fellow teachers, and the degree of such adversity anticipated;
- (2) the proximity or remoteness in time of the conduct;
- (3) the types of credentials held or sought by the person involved;
- (4) any extenuating or aggravating circumstances surrounding the conduct;
- (5) the praiseworthiness or blameworthiness of the motives resulting in the conduct;
- (6) the likelihood of recurrence of the question conduct;
- (7) the extent to which disciplinary action may have an adverse impact or chilling effect on the constitutional rights of the person involved, or other teachers; and
- (8) the publicity or notoriety given to the conduct.

LIKELIHOOD OF ADVERSE EFFECTS ON STUDENTS OR OTHER TEACHERS

28. Although respondent's conduct harmed another person and posed a risk of harm to society in general, no students or other teachers were adversely affected.

PROXIMITY OR REMOTENESS IN TIME

29. Respondent was arrested for the underlying offenses over three and a half years ago. They are more remote than proximate in time.

TYPES OF CREDENTIALS HELD OR SOUGHT

30. Respondent presently holds a Clear SLP Credential. She previously held a One-Year Nonrenewable Speech Language Pathology Services Credential, over which the Commission retains jurisdiction. (Ed. Code, § 44440, subd. (b).)

EXTENUATING OR AGGRAVATING CIRCUMSTANCES

31. Neither the Education Code nor the applicable regulations specify what constitutes "extenuating circumstances." However, California Code of Regulations, title 5, section 80300, subdivision (m), defines "mitigating factor" as "an event or circumstance which demonstrates that the public, school children and the profession would be adequately protected by a more lenient degree of adverse action or no adverse action whatsoever." California Code of Regulations, title 5, section 80300, subdivision (b), lists aggravating factors, the presence of which indicate a greater degree of discipline is necessary to protect students and the teaching profession. These factors include, in pertinent part: (1) a prior record of adverse action; (2) that the misconduct significantly harmed a child, the public, or the educational system; and (3) the credential holder demonstrated indifference toward the consequence of the misconduct.

32. Respondent has no prior disciplinary record with the Commission. At the time of her arrest, respondent was struggling to emotionally cope with her mother's deteriorating health. Weather conditions were poor. Still, respondent significantly harmed an expectant mother, who was required to undergo emergency surgery for her own safety and the safety of her child. In her testimony, and in the evidence she submitted, respondent did not demonstrate indifference toward the consequence of her misconduct. On the contrary, respondent demonstrated significant remorse for her misconduct, and an appreciation of the seriousness of drinking and driving.

PRAISEWORTHINESS OR BLAMEWORTHINESS OF MOTIVES

33. There was nothing praiseworthy about respondent's decision to drive a vehicle while under the influence of alcohol.

LIKELIHOOD OF RECURRENCE

34. The incident at issue here occurred over three and a half years ago. Respondent has had no additional arrests or convictions. She successfully completed a year-long substance abuse treatment program, and she no longer consumes alcohol. When all the evidence is considered, respondent's behavior appears to have been an aberrant act that is unlikely to recur.

CHILLING EFFECT

35. There is no evidence that disciplining respondent's credentials would adversely impact or chill respondent or any other teacher in the free exercise of their constitutional rights.

PUBLICITY OR NOTORIETY GIVEN TO CONDUCT

36. No evidence was presented that the conduct at issue was either publicized or notorious.

Conclusion

37. Complainant proved respondent engaged in unprofessional conduct by driving a vehicle while intoxicated. Her decision to place the public at risk was very unbecoming of an educator and established that she engaged in immoral and unprofessional conduct. However, in light of the mitigating evidence addressed in Factual Findings 25 and 26, outright revocation of her credentials is not warranted. Suspending her credentials for 30 days is sufficient to protect children, the public, and the teaching profession.

LEGAL CONCLUSIONS

Burden and Standard of Proof

1. Complainant bears the burden of proving the allegations in the Accusation by clear and convincing evidence to a reasonable certainty. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035.) Clear and convincing evidence requires proof that is so clear as to leave no substantial doubt and that is sufficiently strong to command the unhesitating assent of every reasonable mind. (*In re Marriage of Brooks & Robinson* (2008) 169 Cal.App.4th 176, 190.)

Applicable Law

2. Pursuant to the Education Code, commencing with section 44000, and California Code of Regulations, title 5, commencing with section 80000, the Commission is responsible for credentialing teachers in public schools in California, including issuing credentials and taking adverse action against applicants and credential holders.

3. Education Code section 44345 provides in part:

The Commission may deny any application for the issuance of a credential or for the renewal of a credential made by an applicant who falls under any of the following categories:

[¶] . . . [¶]

(e) Has committed any act involving moral turpitude.

Any denial pursuant to subdivisions (a) to (e), inclusive, shall be based upon reasons related to the applicant's fitness to teach or fitness to perform other duties which the credential would authorize the applicant to perform.

4. Education Code section 44421 provides, in part:

The Commission on Teacher Credentialing shall privately admonish, publicly reprove, revoke, or suspend for immoral or unprofessional conduct, or for persistent defiance of, and refusal to obey, the laws regulating the duties of persons serving in the public school system, or for any cause that

would have warranted the denial of an application for a credential or the renewal thereof, or for evident unfitness for service.

5. Education Code section 44440, subdivision (b), provides:

The suspension or expiration of any credential, its surrender without the written consent of the commission, or a revocation pursuant to Section 44423 does not deprive the commission of its authority to do the following:

- (1) Institute or continue a disciplinary proceeding against the credential holder upon any ground provided by law.
- (2) Enter an order suspending or revoking the credential.
- (3) Issue a public reproof or private admonition to the credential holder.

6. California Code of Regulations, title 5, section 80300, states in part:

[¶] . . . [¶]

(b) "Aggravating factor" is an event or circumstance which demonstrates that a greater degree of adverse action for an act of professional misconduct is needed to adequately protect the public, schoolchildren or the profession.

Aggravating factors may include, but are not limited to, the following:

[¶] . . . [¶]

(2) that the misconduct was surrounded by or followed by bad faith, dishonesty or other violation of the laws governing educators;

[¶] . . . [¶]

(4) that the misconduct significantly harmed a child entrusted to the care of a credential holder or applicant, significantly harmed the public or the educational system;

7. As set forth in Factual Finding 27, California Code of Regulations, title 5, section 80302, subdivision (a), sets forth the factors to consider “to determine the relationship between the alleged misconduct and the applicant’s or holder’s fitness, competence, or ability to effectively perform the duties authorized by the credential.”

Causes for Discipline

8. Based on the Factual Findings and Legal Conclusions as a whole, complainant established by clear and convincing evidence that respondent committed acts constituting immoral conduct when she drove a motor vehicle while under the influence of alcohol. Consequently, cause exists to discipline her credentials for immoral conduct pursuant to Education Code section 44421.

9. Based on the Factual Findings and Legal Conclusions as a whole, complainant established by clear and convincing evidence that respondent committed acts constituting unprofessional conduct when she drove a motor vehicle while under the influence of alcohol. Consequently, cause exists to discipline her credentials for unprofessional conduct pursuant to Education Code section 44421.

10. Based on the Factual Findings and Legal Conclusions as a whole, complainant did not establish that respondent is clearly unsuitable for teaching by reason of temperamental defects or inadequacies because she drove a motor vehicle while under the influence of alcohol. Consequently, cause does not exist to discipline her credentials for evidence unfitness for service pursuant to Education Code section 44421.

11. Based on the Factual Findings and Legal Conclusions as a whole, complainant did not establish that respondent committed acts of moral turpitude when she drove a motor vehicle while under the influence of alcohol. Consequently, cause does not exist to discipline respondent's credentials pursuant to Education Code section 44435, subdivision (e).

Aggravating Factors

12. Based on the Factual Findings as a whole, complainant did not establish that respondent's misconduct was surrounded by or followed by bad faith, dishonesty, or other violation of the law governing educators. Complainant did establish that respondent's misconduct harmed a member of the public, which is an aggravating factor. (Cal. Code Regs., tit. 5, § 80300, subd. (b)(4).)

Appropriate Discipline

13. Pursuant to Education Code section 44421, the Commission shall privately admonish or publicly reprove a credential holder, or revoke or suspend her credential, if the credential holder has engaged in immoral conduct, unprofessional conduct, action that warrants denial of an application for a credential or the renewal thereof, or is evidently unfit for service. The purpose of licensing proceedings is not

punishment, but to protect the public. (*Fahmy v. Medical Bd. of California* (1995) 38 Cal.App.4th 810, 817.)

14. Careful consideration has been given to the available disciplinary options. When all the evidence is considered, outright revocation of respondent's credentials would be unduly punitive. However, discipline is warranted, and suspending respondent's credentials for 30 days is appropriate to protect children, the public, and the teaching profession.

ORDER

The credentials issued to respondent Dawn M. Ibbs by the California Commission on Teacher Credentialing are hereby SUSPENDED for 30 days.

DATE: June 13, 2025

Matthew Block

MATTHEW S. BLOCK

Administrative Law Judge

Office of Administrative Hearings